

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ELISE TRAN,
Petitioner

VS.

PETER NHO,
Respondent

) Case Number: FDV-26-818905
)
) Hearing Date: June 4, 2026
)
) Hearing Time: 9:00 AM
)
) Department: 404
)
) Presiding: AI MORI
)

REQUEST FOR ORDER ATTORNEY FEES AND COSTS, AWARDED TO PREVAILING PARTY
IN DVRO PROCEEDINGS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) On 1/21/2026, Petitioner Elise Tran (Mother) filed a Request for Domestic Violence Restraining Order (DVRO) against Respondent Peter Nho (Father). Mother is self-represented. Father is represented by attorney Amrit Kullar.
- 2) At the prior hearing on 3/18/2026, the Court denied Mother's Request for DVRO.
- 3) Now on for hearing is Father's Request for Order filed 3/26/2026 asking the Court to order Mother to pay him \$8,000 in attorney's fees and costs that he incurred to defend against Mother's Request for DVRO under Family Code section 6344.
- 4) On 3/19/2026, Father's attorney filed a declaration stating that Father has incurred \$6,251.87 in attorney's fees and costs in defending against Mother's Request for DVRO (and these fees do not include additional fees and costs incurred to address custody and child support).
- 5) On 3/30/2026, Father filed an Income and Expense Declaration.

1 6) On 4/17/2026, Father's attorney filed a declaration stating that Mother owns a nail business and a
2 summary of Mother's PayPal transaction data shows that Mother received in excess of \$170,000
3 between 2013 and 2026 and Venmo records show Mother received \$42,945 between 2024 and
4 2026.

5 7) On 4/27/2026, Father filed a Supplemental Declaration stating that Mother's Bank of America
6 statements show that Mother's accounts receive consistent monthly deposits between \$7,000 to
7 \$8,000 per month.

8 8) On 5/27/2026, Mother filed a Responsive Declaration and an Income and Expense Declaration.
9 Mother states that her Request for DVRO was not frivolous, retaliatory, or made in bad faith.
10 Mother states she cannot afford the fees requested. Mother states that her nail business earns
11 \$2,000 in average monthly income, with \$1,200 per month in average monthly expenses, for total
12 net average income of \$800 per month. Mother attached documentation which appears to show
13 that her partner and godmother provide her with financial assistance. Mother further states she
14 has serious health conditions that severely limit her ability to maintain a stable job. Mother does
15 not specify what health conditions she suffers from, but attaches various records showing a
16 significant number of contacts with medical providers over the past couple of years as well as an
17 extensive list of medications prescribed to her.

18 9) On 6/1/2026, Father filed a Reply Declaration stating that Mother did not timely serve her
19 responsive pleadings and exposes their daughter Kayleigh's Social Security Number in several
20 places. Father asks the Court to seal Mother's Responsive Declaration. Father states that Mother's
21 responsive pleadings are inconsistent, contradicted by documentary evidence, and raise
22 significant concerns regarding the accuracy of the information provided to the Court.

23 **B. Findings and Order**

24 1) Although it appears Mother attempted to redact her social security number and their daughter's
25 social security number from Mother's 2025 tax returns attached to Mother's Income and Expense
26 Declaration filed 5/27/2026, the Court agrees with Father that there remain several places
27 throughout the tax return where Mother's and their daughter's social security number has not
28 been redacted. The Court hereby strikes all pages of Mother's 2025 tax returns from Mother's
29 Income and Expense Declaration filed 5/27/2026.

- 1 2) Family Code section 6344(b) provides, “After notice and a hearing, the court, upon request, may
2 issue an order for the payment of attorney’s fees and costs for a prevailing respondent only if the
3 respondent establishes by a preponderance of the evidence that the petition or request is frivolous
4 or solely intended to abuse, intimidate, or cause unnecessary delay.”
- 5 3) The Court does not find that Father has established by a preponderance of the evidence that
6 Mother’s Request for DVRO was frivolous or solely intended to abuse, intimidate, or cause
7 unnecessary delay.
8 Father’s request for attorney’s fees under Family Code section 6344 is denied.
- 9 4) Father’s attorney shall prepare the Findings and Order After Hearing.
- 10 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
11 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
12 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
13 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
14 proposed order after hearing directly to the court. Failure to submit the order after hearing within
15 10 days may allow the other party to prepare a proposed order and submit it to the court in
16 accordance with CA Rules of Court, Rule 5.125(d).
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